# Rental Contract for Event Equipment and Services

1. **Customer Agreement and Acknowledgment:**

Herein, the Customer indicating agreement by clicking 'I agree to the TERMS AND CONDITIONS attached' party is referred to as the "Customer," who, by signing this agreement, acknowledges that they are hiring or leasing equipment from **Everglow Events & Tents Inc.** for a specified period of time. The equipment is being rented **without an operator** provided by **Everglow Events & Tents Inc.**, meaning the Customer assumes full responsibility for the proper operation, care, and safekeeping of the rented items from the moment the equipment is delivered or picked up until it is returned to **Everglow Events & Tents Inc.**

By entering into this agreement, the Customer agrees to fully adhere to and be bound by the terms and conditions outlined in this contract, as well as any additional instructions or usage guidelines provided by **Everglow Events & Tents Inc.**, either verbally or in writing. These terms govern all aspects of the equipment rental process, including, but not limited to, liability, use, maintenance, payment, cancellation, and indemnification.

Furthermore, the Customer acknowledges that:

1. **No Operator Provided:** The rental does not include personnel or operators to handle or supervise the use of the rented equipment. The Customer is responsible for providing qualified individuals to safely operate, transport, and manage the equipment.
2. **Acceptance of Terms:** The Customer confirms that they have read, understood, and accepted all provisions of this agreement. The Customer also agrees to seek clarification on any clause or term they do not fully comprehend prior to signing.
3. **Legal and Financial Responsibility:** The Customer agrees to assume full legal and financial responsibility for the rented equipment throughout the duration of the rental period. This includes liability for any damage, loss, theft, injury, or other incidents arising from the use, misuse, or improper handling of the equipment, regardless of the cause.
4. **Compliance with Regulations:** The Customer agrees to operate the equipment in compliance with all local, state, and federal laws and regulations. This includes, but is not limited to, obtaining any necessary permits, licenses, or certifications required for the use of the equipment at specific events or venues. The Customer also agrees

to adhere to any safety standards or guidelines provided by **Everglow Events & Tents Inc.** or mandated by applicable law.

5. **Risk and Responsibility:** The Customer accepts that they are renting the equipment "as is" and assumes all risk related to the equipment's usage. **Everglow Events & Tents Inc.** makes no warranties, either expressed or implied, regarding the equipment's suitability for any particular purpose. The Customer is responsible for ensuring that they or any individuals operating the equipment are knowledgeable, trained, or experienced in its use.
6. **Credit Card Authorization and Retention Policy:** The Customer acknowledges and agrees that Everglow Events & Tents Inc. may request and temporarily retain full credit card information (including card number, expiration date, and CVV) at the time of equipment delivery or pickup for security purposes. This information may be used by Everglow Events & Tents Inc. to charge for any outstanding amounts resulting from, but not limited to, damages, loss, theft, cleaning fees, late returns, unauthorized equipment retention, or any other breach of this Agreement.

- Everglow Events & Tents Inc. is authorized to process charges to the Customer's credit card without further notice, provided that such charges are in accordance with the terms and conditions of this Agreement. The Customer waives any requirement of prior notification for such charges.
- All retained credit card information shall be securely stored and automatically deleted no later than three (3) business days after the final return and inspection of the rented equipment.

7. **Identity Verification Requirement:** To ensure the integrity and security of all rental transactions, Everglow Events & Tents Inc. reserves the right to request a valid government-issued photo identification (such as a driver's license or passport) from the Customer at the time of equipment delivery or pickup. The identification must clearly display the Customer's full name and residential address and must match the information provided during the booking process.

- This information will be used solely for verification and fraud prevention purposes and will be deleted no later than three (3) business days after the return and inspection of all equipment.

**2. Scope of Agreement**

This Agreement applies to the rental of all equipment, including but not limited to tents, tables, chairs, dance floors, stages, inflatables, and any other party or event rental equipment offered by **Everglow Events & Tents Inc.**. The scope of this Agreement also extends to the delivery, installation, setup, breakdown, and pickup services provided by **Everglow Events & Tents Inc.**, if applicable.

This Agreement shall remain in effect until all equipment is returned and all payments have been completed, or until the Company has terminated the contract for any reason.

**3. Indemnification and Liability Waiver**

Customer agrees to indemnify, defend, and hold harmless **Everglow Events & Tents Inc.**, its employees, agents, contractors, and affiliates from and against any and all claims, damages, liabilities, losses, or expenses (including attorney's fees) arising out of or resulting from the use or misuse of the rented equipment, except in cases of gross negligence or willful misconduct by **Everglow Events & Tents Inc.**.

**4. Rental Duration and Equipment Usage Period**

The rental period for all equipment rented from **Everglow Events & Tents Inc.** shall begin on the date and time explicitly specified in the rental agreement as the **Delivery Date/Customer Pickup Date** and shall conclude on the specified **Pick-up Date/Customer Return Date**, unless otherwise agreed upon in writing by both parties. The Customer acknowledges and agrees to the following terms regarding the duration of the rental:

1. **Start of Rental Period:**
    - The rental period officially commences when: a. The equipment is delivered by **Everglow Events & Tents Inc.** to the location designated by the Customer; or b. The Customer picks up the equipment from **Everglow Events & Tents Inc.'s** premises.
    - In either case, the equipment is deemed to be in the Customer's possession as of this time, regardless of whether the equipment is actively being used or not.
    - If there is a delay in delivery or pickup caused by the Customer, such as lack of access to the delivery site or failure to arrive at the pickup time, the rental period will begin as originally scheduled, and any delays will not affect the start date and time of the rental.
2. **End of Rental Period:**
    - The rental period shall end on the date and time specified as the **Pick-up Date/Customer Return Date**, which is the point at which: a. The equipment is retrieved by **Everglow Events & Tents Inc.** from the Customer's location; or b. The Customer returns the equipment to **Everglow Events & Tents Inc.**.
    - It is the Customer's responsibility to ensure that all equipment is readily available and accessible for pickup at the agreed-upon time and location. If the equipment is not ready for pickup or return on the specified date, additional rental charges may apply as outlined in the **Late Charges** section.

3. **Extensions to Rental Period:**
    - Should the Customer wish to extend the rental period beyond the originally agreed upon dates, they must notify **Everglow Events & Tents Inc.** at least 48 hours in advance of the original return date. Extensions are subject to equipment availability and may incur additional rental fees, which will be discussed and agreed upon before the extension is confirmed.
        - Any unauthorized extension or retention of the equipment beyond the agreed-upon return date will be considered a breach of contract and may result in additional daily rental fees, penalties, or legal action.
4. **Early Return:**
    - The Customer may choose to return the equipment earlier than the scheduled return date; however, **Everglow Events & Tents Inc.** does not guarantee any refunds, credits, or adjustments to the rental fees for early returns, unless otherwise agreed upon in writing prior to the commencement of the rental period.
    - In the event that the Customer returns the equipment early, they must coordinate the return with **Everglow Events & Tents Inc.** to ensure the proper receipt of the equipment and avoid any confusion regarding the return date.
5. **Responsibility During Rental Period:**
    - During the entirety of the rental period, from the start date to the end date, the Customer assumes full responsibility for the equipment. This includes ensuring that the equipment is used properly, maintained in good condition, and stored securely when not in use.
    - The Customer will be held liable for any damage, theft, or loss of the equipment during the rental period, regardless of whether the equipment is actively being used or not.
    - In cases where the equipment requires specific maintenance or care, the Customer agrees to follow all guidelines provided by **Everglow Events & Tents Inc.** to ensure the safe and proper usage of the rented items.
6. **Inspection Upon Return:**
    - Upon return or pickup of the equipment, **Everglow Events & Tents Inc.** reserves the right to inspect the equipment for any damages, wear, or missing items. The rental period does not officially end until the equipment is returned in the same condition as it was received, accounting for normal wear and tear.
    - If damages, excessive wear, or missing components are identified upon return, the Customer will be notified, and additional charges may be applied for repairs or replacement, as outlined in the **Damage Protection** or **Loss/Theft** sections of this agreement.

7. **Liability After the Rental Period:**
    - If the Customer retains possession of the equipment beyond the agreed-upon return date without prior approval from **Everglow Events & Tents Inc.**, the Customer will assume liability for all risks, including equipment damage, loss, or legal consequences.
    - **Everglow Events & Tents Inc.** reserves the right to retrieve equipment without prior notice if the Customer fails to return it within the designated time frame or violates the terms of this agreement.
8. **Force Majeure and Unforeseen Circumstances:**
    - In the event that unforeseen circumstances, such as natural disasters, severe weather, accidents, or government restrictions, prevent the Customer from returning the equipment or delay **Everglow Events & Tents Inc.** from retrieving the equipment on the specified date, both parties agree to make reasonable accommodations for an alternate return date.
    - In such cases, the rental period may be extended without penalty, provided that the Customer makes every reasonable effort to mitigate the impact of the delay.

**5. Customer Responsibilities**

Customer agrees to be fully responsible for the care, use, and safekeeping of the rented equipment while it is in their possession. This includes ensuring that the equipment is used appropriately, safely, and for its intended purpose.

Customer further agrees to the following:

- **Proper Supervision:** Customer must ensure proper supervision of the rented equipment at all times during the event. Certain equipment, such as inflatables, may require constant adult supervision to ensure safe use.
- **Venue Requirements:** It is the Customer's responsibility to confirm that the venue is suitable for the rented equipment. This includes checking the venue's dimensions, access points, and surface stability.
- **Equipment Protection:** Customer agrees to protect equipment from damage due to exposure to extreme weather, fire, vandalism, or misuse. Equipment must be kept away from water sources unless specifically designed for water-based use.
- **Compliance with Laws:** Customer is responsible for obtaining all necessary permits, licenses, and permissions required by law to use the equipment at the venue. This may include local city permits for tents, stages, or noise ordinances.

**6. Inspection, Condition, and Acceptance of Equipment**

Upon receiving the equipment, Customer is responsible for thoroughly inspecting all items. Any damage, malfunction, or missing items must be reported to **Everglow Events & Tents Inc.** within **2 hours** of delivery or pickup. Failure to report any issues within this timeframe will be considered an acceptance of the equipment "as is," and Customer will assume full responsibility for any issues arising from undetected problems thereafter.

**Customer Checklist Prior to Use:**

8. Ensure the equipment is clean, safe, and free of visible damage.
9. Verify that all components of the equipment are included, as per the rental agreement.
10. Review any instructions or training provided by **Everglow Events & Tents Inc.** for the safe and proper operation of the equipment.

**7. Loading and Unloading of Equipment**

**Customer Responsibility for Loading/Unloading:**

The Customer is solely responsible for the proper loading and unloading of all rental equipment unless otherwise specified in the rental agreement. The Customer affirms that they possess the knowledge, skills, and capability to safely load and unload the equipment without causing damage to the equipment, venue, or surrounding property. The Customer further acknowledges and accepts full liability for any damages that may occur during the loading or unloading process, including but not limited to damage to the equipment itself, injury to persons involved, or damage to vehicles, property, or any other third-party belongings.

**Assistance by Everglow Events & Tents Inc. Personnel:**

If **Everglow Events & Tents Inc.** personnel assist the Customer in loading or unloading the equipment, such assistance is provided as a courtesy and does not transfer responsibility for any resulting damages, injuries, or accidents. The Customer agrees that any assistance rendered by **Everglow Events & Tents Inc.** employees is at the Customer's own risk. The Customer acknowledges and agrees to hold **Everglow Events & Tents Inc.** and its employees harmless from any liability, claims, damages, or injuries arising from such

assistance, regardless of whether such damage or injury results from negligence or any other fault by **Everglow Events & Tents Inc.** personnel.

**Best Practices for Safe Loading and Unloading:**

11. **Use of Proper Equipment:** The Customer agrees to utilize appropriate equipment, such as dollies, hand trucks, ramps, or forklifts (as applicable), to safely load and unload heavier or bulky items.
12. **Clear Pathways:** The Customer should ensure that pathways to and from the loading area are clear of obstacles, debris, or any hazards that could obstruct the safe movement of the equipment.
13. **Weight Limitations:** Customers are responsible for adhering to the weight limitations of their vehicles and trailers to avoid accidents related to overloading.
14. **Securing Equipment:** All rental items must be properly secured in the vehicle or trailer to prevent movement during transport. The Customer acknowledges that failure to properly secure items may lead to equipment damage, personal injury, or third-party damages, for which the Customer will be fully liable.

**Risks During Loading and Unloading:**

The Customer accepts that the loading and unloading of equipment, particularly large or heavy items, inherently carries risks. These risks may include, but are not limited to:

- Damage to the rented equipment itself.
- Injury to the Customer, the Customer's employees, or any third party present during the process.
- Damage to vehicles, trailers, or any other equipment used in loading and unloading.
- Damage to property, including but not limited to buildings, pavements, lawns, or driveways where loading or unloading occurs.

The Customer agrees that **Everglow Events & Tents Inc.** shall bear no responsibility for any such risks, and the Customer assumes all liability for damages or injuries resulting from the loading and unloading process.

**8. Delivery, Installation, and Setup**

**Delivery Services:**

- **Delivery Timing: Everglow Events & Tents Inc.** will make every effort to deliver the equipment on the agreed-upon date and time. However, **Everglow Events & Tents Inc.** shall not be held liable for delays caused by traffic, weather conditions, or other unforeseen circumstances.

- **Access to Venue:** Customer agrees to provide clear and unobstructed access to the event site. If additional labor or equipment is required due to restricted access, such as narrow doorways or stairs, additional fees may apply.
- **Parking and Permits:** Customer is responsible for securing parking and any necessary permits for delivery vehicles at the event location.

**Installation & Setup:**

- **Tent and Large Equipment Setup:** For items like tents, stages, or dance floors, setup and breakdown services are typically included in the rental price. Customer must ensure that the site is ready for installation (e.g., grass is mowed, debris is cleared) before the **Everglow Events & Tents Inc.** team arrives.
- **Electricity and Utilities:** Customer is responsible for providing access to electricity, if required for the operation of the rented equipment, such as lighting, inflatables, or sound systems.

**9. Pickup, Breakdown, and Return of Equipment**

**Pickup & Breakdown Services:**

- **Company-Managed Pickup:** If **Everglow Events & Tents Inc.** is responsible for pickup, all equipment must be disassembled, packed, and ready for collection by the scheduled time. If additional breakdown services are required, these must be arranged in advance and may incur additional charges.
- **Customer-Managed Return:** If Customer is returning the equipment, they must ensure that it is clean, properly packed, and returned to the agreed location by the specified date and time. Failure to return items on time will result in late fees (outlined below).

**Late Fees:**

- A late fee equal to the **total rental amount plus an additional 20% per day** will apply for any equipment returned after the specified return date, with fees accruing daily until the equipment is returned. Late fees are calculated based on the daily rental rate of the equipment.
- After **3 days** of non-return, **Everglow Events & Tents Inc.** may consider the equipment stolen and initiate legal action to recover the full replacement cost.

## 10. Care and Operation of Equipment

Customer agrees to handle and operate the rented equipment with care and in accordance with the instructions provided. Certain equipment may require specialized handling, and failure to adhere to these instructions may result in damage or injury.

**Prohibited Uses:**

- **No Subletting:** Customer may not sublet, loan, or otherwise transfer the rented equipment to a third party.
- **No Alterations:** Customer is prohibited from making any alterations, modifications, or repairs to the rented equipment without the express written consent of **Everglow Events & Tents Inc.**.

**General Usage Guidelines:**

15. **Pop-up Tents:** Must be disassembled in windy conditions to prevent damage.
16. **Dance Floors/Stages:** Must be used on flat, solid ground. Avoid dragging heavy items across the surface.
17. **Inflatables:** Must be properly secured and monitored by adults at all times.
18. **Chairs/Tables:** Must be placed on solid, level ground to ensure stability.
19. **Heat Sources:** Equipment must be kept away from all heat sources.
20. **Patio Heaters:** Patio Heaters must be kept at a minimum of 2 meters away from any materials or walls or surfaces whatsoever.
21. **Purpose:** Use equipment for intended purpose only.
22. **Surfaces:** Use equipment on level surfaces.

## 11. Payment Terms

**Reservation Deposit:** Deposit of **50%** of the total rental cost is required to secure the rental reservation. This deposit will be applied toward the final balance.

**Final Payment:** Full payment is due **14 days** prior to the event date. If the booking is made within 14 days of the event, full payment is required at the time of reservation.

If payment is not received by the deadline, **Everglow Events & Tents Inc.** reserves the right to cancel the reservation and retain the deposit of **25%** of the total rental cost.

**Payment Methods:** Payments can be made by credit card, debit card, E-transfer or other methods agreed upon by **Everglow Events & Tents Inc.**. By providing a credit card,

Customer authorizes **Everglow Events & Tents Inc.** to charge the card for any fees, damages, or additional charges that may arise during or after the rental period.

## 12. Damage Fees

**Damage Fees:** If the equipment is returned damaged or in disrepair beyond normal wear and tear, **Everglow Events & Tents Inc.** reserves the right to deduct replacement costs from the provided credit card. Customer agrees to pay the additional amount within **14 days** of receiving an invoice from **Everglow Events & Tents Inc.**.

## 13. Cancellation Policy

At **Everglow Events & Tents Inc.**, we understand that plans can change, and unforeseen circumstances may arise that lead to cancellations. However, due to the nature of our business and the necessity to allocate resources and reserve equipment for our customers, our cancellation policy has been structured to protect both the availability of our products and services and the integrity of our business operations. By agreeing to this contract, the Customer acknowledges and accepts the following terms regarding cancellations:

1. **Non-Refundable Deposits and Payments:**
    - **Deposits:** The Customer acknowledges that all deposits made to secure rental equipment are **non-refundable** under any circumstances. The deposit represents a commitment from the Customer and ensures the availability of the reserved equipment and services for the specified rental period. Once a deposit is made, **Everglow Events & Tents Inc.** allocates inventory and resources to fulfill the order, preventing other potential customers from reserving the same equipment.
    - **Payments:** Any payments made beyond the initial deposit are also considered non-refundable, regardless of when the cancellation occurs. These payments help cover administrative costs, equipment preparation, and other expenses incurred by **Everglow Events & Tents Inc.** in advance of the event or rental period.
2. **Cancellations Made More Than 14 Days Before Delivery/Customer Pickup:**
    - If the Customer wishes to cancel their order with more than **14 days' notice** prior to the scheduled delivery or pickup date, the following terms will apply:
        - **Deposit:** The 25% deposit of the total rent cost will **not be refunded or credited** toward future rentals. This is to ensure the availability of products and services, as equipment may have already been reserved and preparations made.

        - **Additional Payments:** Any payments made beyond the 25% deposit will also be non-refundable but may be credited toward a future rental, at the sole discretion of **Everglow Events & Tents Inc.**, based on availability and scheduling.
        - **Availability Guarantee:** By placing the deposit, **Everglow Events & Tents Inc.** ensures that the reserved equipment will be held exclusively for the Customer. Cancellations disrupt this guarantee, which is why deposits are not refunded.
3. **Cancellations Made Between 72 Hours and 14 Days Prior to Delivery/Customer Pickup:**
    - For cancellations made with a **minimum of 72 hours' notice** but less than 14 days before the scheduled delivery or pickup date, the following terms will apply:
        - **Deposit:** The 25% deposit will remain non-refundable and non-creditable, as outlined above.
        - **Credit: Everglow Events & Tents Inc.** will issue a **50% credit** of any additional payments (beyond the deposit) made toward the order. This credit may be applied to a future rental, provided that the new rental occurs within **6 months** of the original rental date. After this period, any unused credit will be forfeited.
        - **Conditions for Credit Use:** The issuance of credit is contingent on the Customer rescheduling their rental within the stated time frame. Credits may not be transferred to other customers or applied to unrelated services.
4. **Cancellations Made Less Than 72 Hours Before Delivery/Customer Pickup:**
    - In the event that a cancellation is made with **less than 72 hours' notice** prior to the scheduled delivery or pickup date, the following terms will apply:
        - **No Refunds or Credits:** No refunds, credits, or transfers will be issued for cancellations made within this time frame. The full balance of the order will be due and payable, as **Everglow Events & Tents Inc.** has already committed resources, labor, and inventory for the rental, which cannot easily be reallocated on short notice.
        - **Forfeiture of Equipment Reservation:** The Customer understands that by canceling within this period, they forfeit their reservation, and **Everglow Events & Tents Inc.** may be unable to rent the equipment to other clients. For this reason, strict enforcement of this cancellation policy is necessary to protect our business and other clients.
5. **Unused Rental Items:**
    - No refunds or credits will be issued for rental items that are returned **unused**. This includes situations where the Customer does not use the rented equipment during the rental period, whether due to event cancellation,

changes in event plans, or any other reason. Once the equipment has been rented and leaves **Everglow Events & Tents Inc.'s** possession, it is considered to be in active rental, and all applicable fees will apply.

- The Customer is responsible for ensuring that all equipment is needed and suitable for their event prior to confirming their rental. Changes to event plans or usage do not warrant a refund or credit for items that were not used during the event.

6. **Cancellation Due to Adverse Weather Conditions:**
   - **Weather-Related Cancellations:** If the Customer decides to cancel their event due to **adverse weather conditions**, such as severe storms, hurricanes, or other natural events, **Everglow Events & Tents Inc.** will not provide refunds or credits for cancellations made less than 72 hours prior to the rental. However, for cancellations made **more than 72 hours in advance**, the standard policy regarding deposit retention and the issuance of a 50% credit (as outlined in section 3) will apply.
   - **Postponements:** If the Customer wishes to **postpone** their event due to weather, **Everglow Events & Tents Inc.** may offer to reschedule the rental based on equipment availability. In such cases, no additional fees will apply if the new rental date falls within **30 days** of the original date. Postponements beyond this period may be subject to new rental fees.
7. **Cancellation Due to Force Majeure:**
   - In the event of cancellation due to **force majeure**—defined as unforeseen events beyond the control of either party, including but not limited to acts of God, war, government regulations, pandemics, natural disasters, or other extraordinary events—the Customer and **Everglow Events & Tents Inc.** agree to work in good faith to reschedule the rental. If rescheduling is not possible, the following terms will apply:
     - **Deposits and Payments:** The 25% deposit will remain non-refundable. Any additional payments made may be credited toward a future rental within 12 months, subject to availability and mutual agreement.
8. **Customer Acknowledgment:**
   - The Customer acknowledges that they have read and understood this cancellation policy and agree to its terms. The Customer understands that this policy is designed to ensure fair and consistent business practices for all parties involved and to protect the availability of **Everglow Events & Tents Inc.'s** products and services.

## 14. Weather-Related Cancellations & Equipment Damage

Certain types of equipment, particularly tents, inflatables, and electronics, are susceptible to damage from extreme weather. Customer agrees to monitor weather conditions closely in the lead-up to and during the event and to follow the instructions provided by **Everglow Events & Tents Inc.** for severe weather preparedness.

**Weather-Related Cancellations:** If the event is canceled due to weather more than **72 hours** before the scheduled event, **Everglow Events & Tents Inc.** will issue a **50% credit** toward future rentals. No credits or refunds will be issued for cancellations due to weather **within 72 hours** of the event.

## 15. Insurance Requirements

**Company Insurance:**
While **Everglow Events & Tents Inc.** maintains insurance coverage for its equipment, this insurance may not cover all potential liabilities arising from the use of the equipment. Customer's failure to obtain adequate insurance will result in full personal responsibility for any damages, injuries, or losses.

## 16. Amendment Policy

At **Everglow Events & Tents Inc.**, we recognize that event plans can evolve and change, sometimes requiring modifications to the original rental order. To accommodate such changes while maintaining fairness for both the customer and our operations, we have established the following amendment policy. This policy outlines the procedures, limitations, and conditions under which modifications to your rental order may be made. By agreeing to this contract, the Customer accepts and agrees to comply with the terms below:

**1. Modifications to the Rental Order:**

- The Customer is permitted to modify their rental order by **adding** or **removing** one or more item(s) from their original order, subject to the following conditions:
    - **Additions:** The Customer may request to add additional items to their order, but these additions are **subject to availability** and must be confirmed by **Everglow Events & Tents Inc.** prior to the event date. **Everglow Events &**

**Tents Inc.** cannot guarantee the availability of additional items, especially if the request is made within a short time frame. Any additional items confirmed by **Everglow Events & Tents Inc.** will be charged at the standard rental rates, and the Customer must settle the payment for the added items before the event or upon receipt of the updated invoice.

- **Removals:** The Customer may request to remove items from their order, but the terms under which these removals are accepted vary depending on the time frame of the request, as detailed below.

**2. Amendments Made 14 Days or More Prior to the Event:**

- If the Customer requests to **modify their rental order** by **removing one or more items** with more than **14 days' notice** prior to the scheduled delivery or customer pickup date, the following terms apply:
  - **Reduction Limit:** The Customer is permitted to decrease the total value of their order by up to **75%** of the original order's total cost without incurring any financial penalties.
  - **Deposit Requirement:** This provision is only applicable if the required **50% deposit** has already been placed to secure the order. The deposit will be applied toward the adjusted order total.
  - **No Penalties:** There will be no penalties or additional charges for removing items or reducing the order's value, provided the amendment falls within these parameters. The final order total will be recalculated based on the updated list of rental items, and any outstanding balance must be settled prior to the event date.
  - **Confirmation of Changes:** The Customer must confirm their amended order in writing (via email or an updated contract), and **Everglow Events & Tents Inc.** will provide an updated invoice reflecting the changes.

**3. Amendments Made Between 72 Hours and 14 Days Prior to the Event:**

- For modifications made between **72 hours and 14 days** prior to the scheduled delivery or customer pickup date, the following terms will apply:
  - **Non-Refundable Reductions:** Any reductions made to the rental order within this time frame will be **non-refundable**. However, the Customer may receive a **credit** of up to **50%** of the cost of the items removed, provided that the total reduction does not exceed **50%** of the original order's total value.
  - **Maximum Credit:** The credit amount issued will not exceed 50% of the value of the removed items, and this credit may be applied to a future

rental within **6 months** of the original rental date. After this period, the credit will be forfeited.

- **Credit Use Conditions:** The issued credit is non-transferable and may only be applied to rentals by the same Customer. Credits cannot be combined with any other promotions or offers, and any remaining credit after its use will not be refunded or extended.
- **Additions:** As with earlier amendments, any items added to the rental order within this time frame are subject to availability and will be charged at standard rental rates. Customers are advised to make such requests as early as possible to ensure availability.

**4. Amendments Made Less Than 72 Hours Prior to the Event:**

- Amendments requested with **less than 72 hours' notice** prior to the scheduled delivery or customer pickup date will be subject to stricter limitations:
  - **No Refunds or Credits:** No refunds or credits will be issued for items removed from the rental order within this time frame. The Customer will be responsible for the full balance of the original order, regardless of any reductions in items or services.
  - **Impact of Late Amendments: Everglow Events & Tents Inc.** allocates resources and prepares equipment well in advance of the rental date. Last-minute changes may disrupt logistics, staffing, and inventory management, which is why refunds and credits cannot be provided within this short notice period.
  - **Additions:** While additional items may still be requested, availability is **not guaranteed** for requests made within this window. **Everglow Events & Tents Inc.** will make every effort to accommodate last-minute requests for additional items, but cannot assure that the desired items will be in stock or available for delivery.

**5. Handling of Partial Orders:**

- If the Customer chooses to **partially modify their order**, by either adding or removing items, **Everglow Events & Tents Inc.** will assess the modifications and provide

**17. Late Charges**

**Everglow Events & Tents Inc.** prides itself on maintaining a well-organized and efficient equipment rental process to ensure that all customers receive their rentals on time and in

good condition. Timely return of equipment is crucial to our ability to serve other clients, and failure to return rented items as scheduled can disrupt other events and cause significant operational challenges. To address this, the following late charge policy will apply:

1. **Customer Responsibility for Timely Returns:**
    - The **Customer** is responsible for ensuring that all rented equipment is returned on the agreed-upon return date and time as specified in the contract. In the event that the Customer anticipates any delay in returning the equipment, it is their obligation to **immediately notify Everglow Events & Tents Inc.** to discuss the situation and any potential impacts on the rental schedule.
    - **Notification Requirement:** Customers should contact **Everglow Events & Tents Inc.** as soon as they become aware of the possibility of a late return, ideally providing at least **24 hours' notice**. This allows **Everglow Events & Tents Inc.** to attempt to make necessary adjustments to avoid disrupting other scheduled rentals or events.
2. **Equipment Reserved by Another Client:**
    - In cases where the rented equipment has already been reserved by another client following the Customer's scheduled return date, **Everglow Events & Tents Inc.** reserves the right to require that the equipment be returned as originally specified in the contract. This is to ensure that other customers are not negatively affected by delays in equipment availability.
    - **Obligation to Return Equipment:** If the equipment is needed for another rental, the Customer may be required to expedite the return process to meet the original return deadline. In cases where the Customer fails to comply, late charges will apply, and the Customer may also be held liable for any costs incurred by **Everglow Events & Tents Inc.** in securing alternative equipment for the next client.
3. **Late Charges and Fees:**
    - **Late Charges:** If the Customer fails to return the rented equipment by the scheduled return date and time, a **late charge** will be applied for each day (or part of a day) that the equipment is not returned. The specific late charge rates will be outlined in the rental agreement and will typically be calculated as a **percentage of the daily rental rate** for each item of equipment.
        - **Standard Late Fee Rate:** The late fee will generally be assessed at a rate of **50 % of the daily rental rate** per day, per item. This ensures that **Everglow Events & Tents Inc.** is compensated for the loss of availability and any resulting operational disruptions.
        - **Partial Day Late Charges:** In cases where the equipment is returned later on the same day as the scheduled return time, a prorated late charge may

apply, typically calculated in **half-day increments**. The prorated fee will reflect the portion of the day the equipment was delayed in being returned.

- **Maximum Late Charge:** If the equipment is returned significantly late, **Everglow Events & Tents Inc.** reserves the right to charge up to **100% of the original daily rental rate** per day, per item. This ensures that the costs of the delayed return, including any potential lost revenue, are adequately covered.

4. **Impacts of Late Returns:**
   - **Inconvenience to Future Clients:** A delayed return can cause severe disruptions to the event schedules of other clients who may have reserved the same equipment. This inconvenience can damage **Everglow Events & Tents Inc.'s** reputation and may lead to financial losses if other customers cancel their reservations or seek compensation for the unavailability of the equipment.
     - **Customer Liability:** The Customer may be held responsible for any losses incurred by **Everglow Events & Tents Inc.** as a result of failing to return the equipment on time, including but not limited to the cost of acquiring alternative equipment for the next rental, lost rental revenue, or compensatory damages paid to other clients.
   - **Expedited Equipment Retrieval:** If the Customer fails to return the equipment on time and does not notify **Everglow Events & Tents Inc.** in advance, **Everglow Events & Tents Inc.** may take action to expedite the retrieval of the equipment. This may involve sending a retrieval team to the Customer's location to collect the equipment, and any costs associated with this expedited retrieval will be passed on to the Customer.
5. **Unreturned Equipment and Theft Consideration:**
   - If the Customer does not return the equipment within a **reasonable time frame** (as defined in the rental agreement) after the scheduled return date, **Everglow Events & Tents Inc.** reserves the right to consider the equipment **stolen** and may initiate legal proceedings for the recovery of the equipment or compensation for its value.
   - **Theft Charges:** In cases where the equipment is considered stolen due to non-return, the Customer may be charged the **full replacement value** of the equipment, along with any applicable late charges. In such instances, **Everglow Events & Tents Inc.** will also file a police report and pursue criminal charges if necessary.
6. **Extensions and Adjustments:**
   - In some cases, the Customer may need to extend their rental period. If the Customer wishes to extend the rental beyond the original return date, they must notify **Everglow Events & Tents Inc.** in advance to discuss the possibility of extending the rental period. **Everglow Events & Tents Inc.** will make

reasonable efforts to accommodate extension requests, subject to equipment availability and other scheduling constraints.

- **Extension Fees:** If an extension is granted, additional rental charges will apply for the extended period. These fees will be calculated based on the standard daily rental rate for the equipment and must be paid in advance of the extension being confirmed.
- **Contract Modification:** Any extension or change to the original rental period must be formally documented, either through a contract amendment or written confirmation from **Everglow Events & Tents Inc.**

**18. Equipment Breakdown Policy**

At **Everglow Events & Tents Inc.**, we take great pride in providing high-quality, well-maintained equipment for all rental needs. However, despite rigorous maintenance protocols, unforeseen equipment malfunctions may occur. The following policy outlines the procedures and obligations for both the **Customer** and **Everglow Events & Tents Inc.** in the event of equipment failure or breakdown during the rental period.

1. **Immediate Notification of Breakdown:**
    - In the event that any rented equipment fails to function properly, the **Customer** is required to notify **Everglow Events & Tents Inc.** immediately. Prompt notification allows us to assess the situation and take appropriate action to minimize any disruption to the event.
        - **Reporting Failure:** The **Customer** must contact **Everglow Events & Tents Inc.** via the designated contact number provided in the rental agreement. This number will be available during regular business hours and may also include an after-hours emergency contact for situations requiring urgent attention.
        - **Information to Provide:** When reporting the equipment breakdown, the **Customer** should provide detailed information regarding the nature of the malfunction, including:
            - Equipment type and identification (e.g., model or serial number).
            - Description of the issue (e.g., mechanical failure, electrical malfunction).
            - Time and location of the breakdown.
            - Whether the equipment was in use at the time of the failure.
            - Any steps taken by the **Customer** to address the issue prior to contacting **Everglow Events & Tents Inc.**

2. **Safety Concerns and Immediate Action:**
    - If the equipment failure poses a significant safety risk or presents the potential for harm to individuals at the event, the **Customer** must take **immediate action** to ensure the safety of all participants.
        - **Discontinuation of Use:** The **Customer** is required to **immediately cease using** the malfunctioning equipment to prevent accidents, injuries, or further damage. Under no circumstances should defective equipment continue to be used after a breakdown is detected.
        - **Contact Emergency Services:** If the equipment failure presents an urgent safety hazard (such as a fire risk or collapse), the **Customer** is responsible for contacting **emergency services** (e.g., 911) to ensure that appropriate safety measures are taken.
        - **On-Site Supervision:** Until the malfunctioning equipment is safely removed or repaired, the **Customer** should ensure that the equipment is isolated from use and supervised to prevent anyone from inadvertently using or coming into contact with it.
3. **Assessment and Response by Everglow Events & Tents Inc.:**
    - Upon receiving notification of the breakdown, **Everglow Events & Tents Inc.** will promptly evaluate the situation and determine the appropriate course of action. The specific response will depend on the nature of the equipment failure and the availability of replacement or repair options.
        - **On-Site Repairs:** In cases where the malfunction is minor and can be easily remedied, **Everglow Events & Tents Inc.** may dispatch a technician to the event location to **repair the equipment on-site**. The repair will be conducted as quickly as possible to minimize disruption to the event. The **Customer** must provide reasonable access to the equipment and assist in facilitating the repair process if necessary.
        - **Equipment Replacement:** If the malfunction cannot be repaired on-site, and if a suitable replacement is available, **Everglow Events & Tents Inc.** will arrange to **deliver a replacement unit** to the event location. Delivery and installation will be completed as swiftly as possible to ensure the event continues with minimal interruption.
            - **Availability of Replacement:** Equipment replacement is subject to availability. In cases where the specific equipment item is not readily available for replacement, **Everglow Events & Tents Inc.** will make reasonable efforts to provide an alternative piece of equipment with similar functionality.
        - **Alternative Solutions:** If neither repair nor replacement is feasible within a reasonable timeframe, **Everglow Events & Tents Inc.** may work with the **Customer** to identify alternative solutions, such as modifying the event

setup, offering a substitute piece of equipment, or providing additional support personnel.

4. **Refund Policy for Equipment Failure:**
    - If the breakdown is determined to be the result of a malfunction or defect in the equipment and is **not caused by the customer**, **Everglow Events & Tents Inc.** will take the following steps to address the situation:
        - **Partial Refunds:** If the malfunction occurs **during the event** and the equipment is essential for the continuation of the event (e.g., a power generator, tent structure, or lighting system), **Everglow Events & Tents Inc.** will issue a **partial refund** for the affected equipment. The amount of the refund will be calculated based on the portion of the rental period in which the equipment was non-operational.
        - **Full Refunds:** If the malfunction occurs **prior to the start of the event** and the equipment cannot be repaired or replaced in time for the event, **Everglow Events & Tents Inc.** will issue a **full refund** for the equipment in question. This applies only to the specific item(s) that failed, not the entirety of the rental contract unless the equipment failure renders the event impossible to continue.
5. **Customer Liability for Equipment Misuse:**
    - In cases where the equipment breakdown is caused by **misuse, negligence, or improper handling** by the **Customer** or event participants, the **Customer** may be held **financially responsible** for repair or replacement costs. Examples of misuse include, but are not limited to:
        - Exceeding the rated capacity or overloading the equipment.
        - Operating equipment in an unsafe manner or contrary to the provided usage instructions.
        - Failing to properly secure or install equipment as directed.
        - Using the equipment for purposes other than those intended.
    - **Repair Costs:** If it is determined that the **Customer's** actions directly led to the breakdown of the equipment, the **Customer** will be responsible for covering the cost of repairs, including labor and parts. These costs will be charged in addition to any applicable late fees or damage protection limits.
    - **Replacement Costs:** In cases where the equipment is damaged beyond repair due to misuse, the **Customer** will be responsible for covering the **full replacement value** of the equipment.
6. **Exclusions to Equipment Breakdown Coverage:**
    - **Everglow Events & Tents Inc.** will not be held responsible for equipment failures due to factors beyond our control, including:
        - **Acts of Nature:** Damage or malfunction caused by extreme weather conditions (e.g., storms, flooding, high winds) or other natural events.

- **Third-Party Interference:** Damage or malfunction caused by individuals or contractors not affiliated with **Everglow Events & Tents Inc.**, such as unqualified technicians attempting repairs.
- **Power Failures:** Equipment that fails to operate due to electrical issues at the event location (e.g., power outages or faulty wiring) unless the equipment includes a backup power source.

*We suggest implementing a means for the customer to contact you after-hours in case of an emergency, such as an emergency contact number. This should especially be the case for equipment that may require immediate attention such as motorized equipment, or tentage.*

*For large tent rentals, we also provide evacuation guidelines in case of a heavy storm. We suggest providing such guidelines.*

**19. Access to Equipment Policy**

**Everglow Events & Tents Inc.** understands that timely and unhindered access to rental equipment is essential for the smooth operation of events. To ensure both the **Customer** and **Everglow Events & Tents Inc.** can effectively manage the rental equipment, the following access policy outlines the requirements and expectations regarding access to equipment before, during, and after the rental period.

1. **Priority Equipment Access:**
    - The **Customer** acknowledges that certain equipment, designated as priority equipment, requires **24-hour, unhindered access** at all times. This equipment includes, but is not limited to:
        - **Marquee Tents:** These large structures may need adjustments or emergency access for safety reasons.
        - **Audio/Visual Equipment:** Equipment used for sound or presentations must be accessible for technical support and troubleshooting.
        - **Lighting Systems:** Access is necessary for adjustments, repairs, or additional setup as the event progresses.
    - The **Customer** agrees to facilitate access to priority equipment for **Everglow Events & Tents Inc.** personnel at all times, regardless of event hours or other activities taking place at the venue.

2. **General Equipment Access:**
    - **Everglow Events & Tents Inc.** requires **24-hour access** to all rental equipment, where and if reasonable, to ensure proper management, maintenance, and support throughout the rental period. This includes:
        - **Regular Inspections:** To verify the condition and functionality of the equipment and address any issues that may arise.
        - **Repairs or Maintenance:** Immediate access may be necessary to perform repairs or maintenance on equipment to prevent disruption to the event.
        - **Replacement Equipment:** If equipment fails and a replacement is required, quick access allows for timely delivery and installation of alternative equipment.
    - The **Customer** is responsible for providing clear and unrestricted access to equipment locations. This includes ensuring that pathways, doors, and entry points are free from obstructions, allowing **Everglow Events & Tents Inc.** personnel to enter and exit the premises without delay.
3. **Access Limitations and Conditions:**
    - In situations where **24-hour access** is not feasible (due to specific venue restrictions, security protocols, or other conditions), the **Customer** must communicate these limitations to **Everglow Events & Tents Inc.** at the time of rental agreement signing. Any special conditions regarding access must be documented in writing and agreed upon by both parties.
        - **Prior Notification:** If there are specific hours during which access is restricted, the **Customer** must provide **Everglow Events & Tents Inc.** with sufficient notice (minimum of 72 hours) to adjust operational plans accordingly.
    - **Access for Emergencies:** In case of emergencies or urgent situations, **Everglow Events & Tents Inc.** reserves the right to enter the premises without prior notification to ensure the safety and functionality of the equipment. This includes situations where equipment may pose a safety hazard or requires immediate attention.
4. **Access Rights and Responsibilities:**
    - The **Customer** grants **Everglow Events & Tents Inc.** and its authorized personnel the right to enter the premises where the rented equipment is located for the purposes outlined in this policy. This right includes the ability to:
        - **Inspect Equipment:** Conduct routine checks to ensure that equipment is being used correctly and safely.
        - **Perform Maintenance:** Carry out necessary repairs and maintenance tasks as required.
        - **Recover Equipment:** Retrieve equipment that has been rented, especially if rental terms have been violated or if there is non-payment for the rental.

- The **Customer** is responsible for ensuring that access to equipment does not violate any local laws, venue rules, or regulations. Should any access-related issues arise that hinder **Everglow Events & Tents Inc.** from fulfilling its obligations, the **Customer** agrees to cooperate fully to resolve these issues promptly.

5. **Security and Liability:**
   - The **Customer** is responsible for ensuring the security of the equipment during the rental period. While **Everglow Events & Tents Inc.** requires access to equipment, the **Customer** must take necessary precautions to protect the equipment from theft, vandalism, or damage when access is restricted.
   - In the event that equipment is damaged, lost, or stolen due to inadequate security measures taken by the **Customer**, the **Customer** will be held liable for repair or replacement costs, as outlined in the damage protection policy.
6. **Documentation and Communication:**
   - **Everglow Events & Tents Inc.** will maintain documentation of any access agreements, limitations, and special conditions associated with each rental agreement. This documentation will be made available to the **Customer** upon request.
   - Effective communication between **Everglow Events & Tents Inc.** and the **Customer** is crucial for managing access issues. Both parties are encouraged to discuss any concerns or adjustments to access arrangements as early as possible to avoid misunderstandings or disruptions.
7. **Customer Acknowledgment:**
   - By signing this contract, the **Customer** acknowledges their understanding of the access requirements and agrees to comply with all stipulations outlined in this policy. The **Customer** further commits to ensuring that their staff and any event participants are informed of access protocols to facilitate a smooth operational process during the rental period.

## 20. Title and Ownership of Equipment

1. **Ownership Rights:**
   - The **Customer** acknowledges and agrees that all rental equipment provided by **Everglow Events & Tents Inc.** remains the sole property of **Everglow Events & Tents Inc.** at all times during the rental period and beyond. This ownership includes but is not limited to:
     - **Tents**
     - **Tables**
     - **Chairs**
     - **Audio/Visual Equipment**

        - **Decorative Items**

**Other Rental Equipment**

23. **Retention of Title:**
    - **Everglow Events & Tents Inc.** retains legal title to the equipment until the equipment is returned in its original condition, subject to normal wear and tear. The **Customer** does not acquire any ownership rights, title, or interest in the equipment through the rental agreement or any other dealings.
3. **No Transfer of Rights:**
    - The **Customer** agrees not to sell, transfer, pledge, or otherwise dispose of the equipment in any manner. This includes, but is not limited to, any attempt to create a security interest in the equipment or to allow any lien to be placed upon the equipment. Any such actions are strictly prohibited and will be deemed a violation of this agreement.
4. **Retention of Possession:**
    - The **Customer** shall maintain possession of the equipment only for the duration of the rental period specified in this agreement. The **Customer** is responsible for safeguarding the equipment and ensuring its proper use in accordance with the guidelines provided by **Everglow Events & Tents Inc.**.
5. **Recovery of Equipment:**
    - In the event of a breach of this agreement by the **Customer**, including but not limited to:
        - Non-payment of rental fees
        - Failure to return the equipment by the agreed-upon return date
        - Misuse or abuse of the equipment
    - **Everglow Events & Tents Inc.** reserves the right to retake possession of the equipment without prior notice to the **Customer**. This right extends to:
        - Entering the premises where the equipment is located
        - Employing reasonable measures, including legal action if necessary, to recover the equipment
    - The **Customer** agrees to cooperate fully with **Everglow Events & Tents Inc.** in the recovery of the equipment and to provide any necessary information or assistance required.

**21. Fees, Fines, and Taxes**

1. **Payment Obligations:**
    - The **Customer** hereby agrees to assume full financial responsibility for any and all taxes, fees, fines, licenses, or permits that may arise in connection with the

rental, use, or possession of equipment provided by **Everglow Events & Tents Inc.**. This includes, but is not limited to:

- **Sales Tax:** Applicable sales tax on rental fees as mandated by local, state, or federal law.
- **Service Fees:** Any additional service fees associated with the delivery, setup, or dismantling of the rented equipment.
- **Licensing Fees:** Fees for any necessary permits or licenses that may be required by local authorities to legally operate or utilize the rented equipment in a public space or at an event.

2. **Notification of Additional Costs:**
   - **Everglow Events & Tents Inc.** will make every reasonable effort to inform the **Customer** of any potential fees, fines, or taxes applicable to their rental prior to the finalization of the contract. However, the **Customer** understands that it remains their responsibility to inquire about and understand any associated costs that may be applicable based on their specific circumstances and location.
3. **Liability for Fines and Penalties:**
   - In the event that fines or penalties are incurred as a result of the **Customer**'s use of the rented equipment, the **Customer** agrees to assume full liability for these charges. This includes:
     - **Traffic Violations:** Any fines resulting from the transportation of the rented equipment, including but not limited to violations of local vehicle codes.
     - **Permit Violations:** Fines or penalties resulting from failure to obtain necessary permits or licenses before utilizing the rented equipment for an event.
     - **Zoning Violations:** Any penalties imposed by local authorities due to non-compliance with zoning regulations regarding the use of rented equipment in specific areas.
4. **Reimbursement Process:**
   - Should **Everglow Events & Tents Inc.** incur any fees, fines, or taxes on behalf of the **Customer**, the **Customer** agrees to reimburse **Everglow Events & Tents Inc.** for the full amount of these costs upon receipt of appropriate documentation. **Everglow Events & Tents Inc.** will provide an itemized statement detailing the incurred charges, including any supporting documentation from relevant authorities, and the **Customer** shall remit payment within a specified timeframe as outlined in this agreement.
5. **Tax Exemptions:**
   - If the **Customer** qualifies for tax exemption based on their status (e.g., non-profit organization, governmental agency), the **Customer** must provide valid

tax-exempt documentation to **Everglow Events & Tents Inc.** prior to finalizing the rental agreement. Failure to provide such documentation will result in the **Customer** being responsible for all applicable taxes.

6. **Indemnification for Taxes and Fines:**
   - The **Customer** agrees to indemnify and hold harmless **Everglow Events & Tents Inc.**, its officers, employees, and agents from any claims, damages, or losses resulting from the failure of the **Customer** to pay any taxes, fees, fines, licenses, or permits arising from the rental or use of the equipment. This indemnification

     extends to all legal costs incurred by **Everglow Events & Tents Inc.** in the enforcement of this clause.
7. **Amendments and Updates:**
   - **Everglow Events & Tents Inc.** reserves the right to amend its fees, fines, and tax policies as necessary to comply with changes in applicable laws or regulations. The **Customer** will be notified of any such changes in writing, and these amendments will take effect as outlined in the communication.

## 22. Damage Protection

1. **Scope of Coverage:**
   - The **Damage Protection** plan provided by **Everglow Events & Tents Inc.** is designed to offer limited financial coverage for damages that occur to rented equipment during the rental period. This plan is intended to protect both the **Customer** and **Everglow Events & Tents Inc.** in the event of accidental damage. The specifics of the coverage are as follows:
     - **Initial Coverage:** Damage protection covers the first **$100** of any equipment that is broken or damaged during the rental period. This coverage is applicable to any equipment rented from **Everglow Events & Tents Inc.**, provided that the damage is reported in accordance with the procedures outlined in this agreement.
2. **Coverage Beyond Initial Amount:**
   - In instances where damages exceed the initial **$100** threshold:
     - The **Customer** will be responsible for **50%** of the costs associated with the remaining damage beyond the initial coverage amount.
     - **Everglow Events & Tents Inc.** will cover the remaining **50%** of the costs incurred. This shared liability is intended to encourage responsible use of the equipment while providing financial relief to the **Customer** in the event of unforeseen circumstances.

3. **Exclusions from Coverage:**
    - The following circumstances are expressly excluded from the **Damage Protection** plan:
        - **Lost or Stolen Items:** Damage protection does not provide coverage for any equipment that is lost, stolen, or otherwise unaccounted for during the rental period. The **Customer** is advised to take all necessary precautions to secure rented equipment at all times.
        - **Misuse or Negligence:** Any damage resulting from misuse, negligence, or failure to follow the proper usage guidelines provided by **Everglow Events & Tents Inc.** will not be covered under this plan. This includes, but is not limited to, damages arising from:
            - Overloading or exceeding the rated capacity of the equipment.
            - Improper handling, loading, or unloading of equipment.
            - Failure to secure equipment against environmental hazards (e.g., high winds, heavy rain).
        - **Acts of God:** Damage resulting from natural disasters, including but not limited to floods, earthquakes, hurricanes, or other catastrophic events, is not covered by this protection plan.
4. **Non-Refundable Nature:**
    - The fee for **Damage Protection** is non-refundable. This means that once the fee has been paid, the **Customer** will not receive any refund for this coverage, regardless of whether any damage occurs during the rental period. The **Customer** acknowledges that the purchase of this coverage is an acknowledgment of the potential risk associated with renting equipment.
5. **Claims Process:**
    - In the event of damage to the rented equipment, the **Customer** must promptly report the damage to **Everglow Events & Tents Inc.** within **24 hours** of the incident. The following steps should be taken:
        - Contact **Everglow Events & Tents Inc.** using the provided emergency contact information to report the damage.
        - Complete a **Damage Report Form** provided by **Everglow Events & Tents Inc.**, detailing the nature of the damage, the circumstances surrounding the incident, and any witnesses to the event.
        - Submit any photographs of the damaged equipment as part of the claims process to assist in the assessment of the damages.
6. **Assessment and Resolution:**
    - After a damage claim is submitted, **Everglow Events & Tents Inc.** will assess the damage and determine the total cost of repairs or replacement, if necessary. The **Customer** will be notified of the assessment results, and the financial responsibility will be calculated based on the terms of the **Damage Protection**

plan. If the damage exceeds the initial **$250** threshold, the **Customer** will receive an invoice reflecting their share of the costs.

7. **Insurance Recommendation:**
    - While the **Damage Protection** plan offers a level of coverage for damages, it is important for the **Customer** to understand that this coverage is not a substitute for comprehensive insurance. The **Customer** is strongly encouraged to obtain their own insurance coverage for events, including coverage for liability, property damage, and theft of equipment, to protect against any unforeseen circumstances that may arise during their event.
8. **Acknowledgment of Understanding:**
    - By signing this agreement, the **Customer** acknowledges that they have read and understood the terms of the **Damage Protection** plan and agree to be bound by its provisions. The **Customer** further acknowledges that they are responsible for any damage that exceeds the coverage limits outlined herein and agrees to adhere to the guidelines set forth in this section.

**23. Customer Acknowledgment**

1. **Contractual Agreement:**
    - The information contained herein constitutes the entire agreement between **Everglow Events & Tents Inc.** and the Customer indicating agreement by clicking 'I agree to the TERMS AND CONDITIONS attached' **Customer** regarding the rental of equipment and services. By signing this agreement, the **Customer** acknowledges that they are entering into a legally binding contract, which outlines the rights, responsibilities, and liabilities of both parties.
2. **Review and Understanding of Terms:**
    - The **Customer** affirms that they have thoroughly reviewed and fully understand all terms and conditions set forth in this contract. This includes, but is not limited to:
        - The responsibilities related to the rental of equipment.
        - The liability for any damage or loss incurred during the rental period.
        - The policies regarding payment, cancellation, amendments, late returns, and damage protection.
    - The **Customer** acknowledges that they have had the opportunity to ask questions and seek clarification on any provisions within this contract. Any questions posed by the **Customer** have been answered to their satisfaction.
3. **Acceptance of Responsibilities:**
    - The **Customer** explicitly agrees to abide by all terms, conditions, and provisions outlined in this contract. This agreement includes acceptance of liability for any damages, losses, or incidents that occur during the rental period as described in

the relevant sections. The **Customer** understands that failure to comply with these terms may result in additional charges or legal action.

4. **Authorization for Payment Processing:**
    - By paying invoice, the **Customer** authorizes **Everglow Events & Tents Inc.** to process their credit card information, which has been provided as security for the rental transaction. This authorization includes, but is not limited to:
        - Charging the credit card for the initial rental payment, including the required deposit and any outstanding balance due prior to or upon equipment delivery.
        - Assessing additional charges for any late return of equipment as specified in the **Late Charges** policy.
            - Processing charges for add-ons or additional services requested by the **Customer** after the initial contract has been signed.
        - Charging for items that are returned in a dirty condition, which may require cleaning or maintenance.
        - Billing for any lost or stolen items that are not covered under the **Damage Protection** plan, as well as any damages that exceed the coverage limits outlined.
5. **Acknowledgment of Responsibility for Payment:**
    - The **Customer** acknowledges that they are solely responsible for ensuring that sufficient funds are available in their account to cover any charges incurred under this contract. Should any charge be declined or reversed, the **Customer** agrees to provide an alternative method of payment promptly. Additionally, any fees incurred by **Everglow Events & Tents Inc.** as a result of declined payments may be passed on to the **Customer**.
6. **Consequences of Breach:**
    - The **Customer** understands that breaching any of the terms of this contract, including failure to make timely payments, returning equipment late, or failing to return equipment in its original condition, may result in legal action, collections, or other remedies as deemed appropriate by **Everglow Events & Tents Inc.**. The **Customer** agrees to be liable for any costs associated with collection efforts, including legal fees, incurred by **Everglow Events & Tents Inc.** in the event of default.